

Waypoint — Terms of Service

DRAFT FOR LEGAL REVIEW

Not legal advice. A starting draft to save your attorney time, not a substitute for one. Have qualified counsel review and adapt — especially the safety disclaimer, assumption of risk / release, limitation of liability, refunds, and governing-law sections — before publishing. Bracketed [...] items need your input. Pre-injury releases and liability caps are enforced differently by state and cannot waive gross negligence or willful misconduct in many places.

Effective date: September 7, 2026 · **Operator:** Waypoint Group Holdings LLC, DBA Chasing Waypoints Media ("Waypoint," "we," "us"), operator of the Waypoint live-tracking service at app.chasingwaypoints.com (the "Service").

1. Agreement to these Terms

By creating an account, joining an event, viewing a shared map, or otherwise using the Service, you agree to these Terms and to our Privacy Policy. If you use the Service on behalf of an organization, you represent that you are authorized to bind it. If you do not agree, do not use the Service.

2. What the Service is — and is NOT (read this)

Waypoint displays the approximate locations of GPS beacons (e.g. Garmin inReach, SPOT, ZOLEO) and browser-based trackers on a shared map, with optional feeds and exports. Its purpose is to add visibility to systems you already use and to facilitate and share information.

Location data is approximate, delayed, and may be missing. Positions come from third-party devices and networks and are shown **as reported, on a delay, and without any guarantee of accuracy, timeliness, completeness, or availability.** A missing, stale, or last-known position is normal and **does not** mean a person is safe, stationary, lost, or in distress. **You must not infer anyone's status, safety, or need for help from the map,** and you must not use the Service to navigate to a person in distress without independent confirmation from another source.

Waypoint is not an emergency, safety-of-life, search-and-rescue, or monitoring service. We do not monitor maps, we do not dispatch help, and we have **no duty to monitor** any map, event, position, or SOS indicator. Any in-app "SOS" indicator is only a visual cue shown to an organizer or command user who happens to be looking at the map at that moment; it is not delivered to us, not monitored, and may fail for reasons outside our control (device, network, browser, power, or because no one is viewing). **The presence of an SOS indicator does not mean help has been notified, and the absence of one does not mean there is no emergency. Do not rely on Waypoint for emergencies.** For any life-safety situation, use your beacon's own dedicated SOS function — which contacts a professional 24/7 emergency-response coordination center — and follow local emergency procedures.

Your beacon: setup and proper use are your responsibility. If you use a satellite/GPS locating beacon (e.g. Garmin inReach, SPOT, ZOLEO), you are solely responsible for correctly purchasing, activating, configuring, maintaining, and testing it and its subscription/airtime, and for enabling the sharing/feed settings the Service relies on. Waypoint can only display what your device and its network actually report; we do not control and are not responsible for your device, its settings, its subscription, or the satellite/cellular networks it uses.

App- and phone-based tracking is recreational only. Any phone- or browser-based tracking the Service offers is provided for convenience and recreation and depends on the phone's battery, operating-system permissions, and cellular/Wi-Fi coverage. It is **not** reliable in remote or off-grid areas and is **not** a substitute or replacement for a dedicated satellite emergency locating beacon. Do not rely on app-based tracking for safety; carry and use a proper emergency beacon.

Assumption of risk and release. Adventure, off-road, rally, motorsport, and similar activities are **inherently dangerous** and involve risks — including property damage, serious injury, and death — that cannot all be foreseen, eliminated, or accounted for. The Service is a tool, not a substitute for real-world common sense, preparation, physical readiness, or backup planning. You are solely responsible for your own safety and for those in your care — your fitness, training, equipment, route and weather decisions, and contingency plans, and for carrying independent means of navigation, communication, and emergency response. You knowingly and voluntarily **assume all such risks**, whether or not you use the Service. To the maximum extent permitted by law, and in consideration of being permitted to use the Service, you **release, waive, and discharge** Waypoint and its owners, employees, and suppliers from any and all claims, demands, and liability for loss, damage, injury, or death arising from or related to your use of, or reliance on, the Service or the activities you track with it, including any claim based on the accuracy, timeliness, delivery, or availability of location or alert data. Waypoint aims only to bring additional visibility to systems you already rely on — responsibility for your safety remains yours.

Viewers and spectators. Anyone viewing a shared, public, or embedded map does so for general information only, must not rely on it for anyone's safety, and acquires no rights against Waypoint by viewing it.

3. Accounts

You must provide accurate information and keep your credentials secure. You are responsible for activity under your account. You must be the age of majority in your jurisdiction (or have verifiable parental/guardian consent) to create an account.

4. Organizers, entrants, and rosters

- **Organizers** create events, upload rosters, add beacon feed links, and set event visibility and payment options. Organizers represent that they have the right to add each entrant's information and beacon feed, and that they have obtained any consents required to share entrants' locations and emergency ("ICE") information with the organizer and their designated command/recovery users.

- **Entrants** appear on an event map via the beacons and information the organizer provides or that the entrant supplies at join. Emergency/ICE information is shown only to the organizer and authorized command users, never on public or embedded maps.
- You are responsible for the accuracy and lawfulness of content you upload, including rosters, routes, waypoints, branding, and sponsor material, and for having the rights to use it.

5. Plans, payments, and refunds

- **Pricing** (subject to change on notice): Free rides (up to 10 participants); Events at \$200 for 40 seats with additional seats in blocks of 10 for \$40; Organization subscription at \$3,500/year (includes a shared annual pool of 1,500 entrants that resets each renewal and does not roll over); Individual at \$15/year and Individual Plus at \$29/year. Where an event is set to **entrant-paid**, each entrant pays a fee based on the event's length — \$10 for events up to 3 days, \$12 up to 7 days, and \$15 up to 30 days — to Waypoint at join; Waypoint currently retains this amount (organizer payouts are not offered at this time).
- **Billing** is handled by Stripe. One-time event and seat purchases are charged at checkout. Subscriptions renew automatically until canceled; you authorize recurring charges. You can cancel or view invoices through the customer billing portal.
- **Taxes** may apply and are your responsibility unless stated otherwise.
- **Refunds:** Except where required by law, fees are non-refundable, including one-time event/seat purchases and the unused portion of a subscription period or entrant pool. Canceling a subscription stops future renewals but does not refund the current period.
- **Non-payment / chargebacks** may result in suspension or termination.

6. Acceptable use

You agree not to: use the Service unlawfully or to harass, stalk, endanger, or surveil anyone without authorization; upload others' personal or location data without a lawful basis and required consent; misrepresent an event, organization, or affiliation; attempt to access accounts, data, or events that are not yours; scrape, overload, reverse-engineer, or interfere with the Service; resell or sublicense the Service except as expressly permitted (e.g. the Organization white-label offering); or infringe intellectual-property or privacy rights.

7. Suspension and termination

We may suspend or terminate any account, event, or access — with or without notice — if we believe there is a violation of these Terms, a legal or safety risk, non-payment, fraud or chargeback abuse, or misuse of the Service. A suspended event immediately stops displaying live positions and disables its public, embed, feed, and command access. We may also remove content that violates these Terms. You may stop using the Service at any time; provisions that by their nature should survive do survive termination (including Sections 2, 5, 8–13, and 17–20).

8. Privacy and data

Our Privacy Policy (below) describes how we handle personal and location data. Location and emergency information are inherently sensitive; by using the Service you consent to the processing and sharing described there and in these Terms (including display to authorized organizer/command users and, where enabled by the organizer, on public or embedded maps). Organizers are independently responsible for their lawful basis to collect and share entrant data. Do not upload data you are not permitted to share.

9. Third-party services and content

The Service integrates with third parties (including Garmin, SPOT, ZOLEO, Mapbox, Google Earth, and Stripe) governed by their own terms. We are not responsible for third-party devices, networks, data, availability, or acts. Sponsor logos, event branding, routes, and other third-party content are the responsibility of the party that supplies them.

10. Intellectual property

The Service, including its software, design, and Waypoint marks, is owned by Waypoint and its licensors and provided under a limited, revocable, non-exclusive, non-transferable license for permitted use. You retain rights in content you upload and grant Waypoint a license to host, process, and display it to operate the Service. The Organization white-label option lets an organization present the public/command experience under its own branding with a "Tracking powered by Waypoint" credit; it does not transfer ownership of the Service.

11. Disclaimers

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, ACCURACY, AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT LOCATION DATA IS ACCURATE, CURRENT, COMPLETE, OR UNINTERRUPTED, OR THAT THE SERVICE (OR ANY ALERT OR SOS INDICATOR) WILL BE ERROR-FREE, DELIVERED, OR AVAILABLE AT ANY GIVEN TIME. SEE SECTION 2.

12. Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, WAYPOINT AND ITS OWNERS, EMPLOYEES, AND SUPPLIERS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF LIFE, INJURY, LOSS OF DATA, OR LOSS OF PROFITS, ARISING FROM OR RELATED TO THE SERVICE OR ANY RELIANCE ON LOCATION OR ALERT DATA, EVEN IF ADVISED OF THE POSSIBILITY. OUR TOTAL AGGREGATE LIABILITY FOR ANY CLAIM WILL NOT EXCEED THE GREATER OF \$100 OR THE AMOUNT YOU PAID US FOR THE SERVICE IN THE 12 MONTHS BEFORE THE CLAIM. Some jurisdictions do not allow certain limitations; some may not apply to you.

13. Indemnification

You will indemnify and hold Waypoint harmless from claims, damages, and expenses (including reasonable legal fees) arising from your use of the Service, your content or rosters, your events, or your violation of

these Terms or of any law or third-party right.

14. Changes

We may update these Terms; material changes will be posted with a new effective date and, where appropriate, notice. Continued use after changes take effect means you accept them.

15. Governing law and disputes

These Terms are governed by the laws of the State of California, without regard to conflicts of law. The state and federal courts located in San Diego County, California have exclusive jurisdiction over any dispute arising out of or relating to these Terms or the Service, and you consent to personal jurisdiction and venue there.

16. Contact

Waypoint Group Holdings LLC (DBA Chasing Waypoints Media). Questions: support@chasingwaypoints.com.

17. Force majeure

We are not liable for any delay or failure of the Service caused by events beyond our reasonable control, including satellite, cellular, or internet outages, third-party device or network failures, acts of God, severe weather, power failures, or governmental actions.

18. Severability

If any provision of these Terms (including any part of the assumption of risk, release, disclaimer, or limitation of liability) is held unenforceable, that provision will be limited or severed to the minimum extent necessary, and the remaining provisions will remain in full force and effect.

19. Entire agreement; no waiver

These Terms and the Privacy Policy are the entire agreement between you and Waypoint regarding the Service and supersede prior understandings. Our failure to enforce any provision is not a waiver of it. You may not assign these Terms; we may assign them in connection with a merger, acquisition, or sale of assets.

20. Acknowledgment

By using the Service you acknowledge that you have read and understood these Terms — in particular Section 2 (what the Service is and is not, the data and SOS disclaimers, your beacon responsibilities, and the assumption of risk and release) — and agree to be bound by them.

NOTES FOR COUNSEL — TERMS

- Confirm legal entity, governing law/venue, and whether to add binding arbitration + class-action waiver.

- Tighten the assumption of risk / release (§2) for your jurisdiction; several states narrow pre-injury releases and none can waive gross negligence. Consider a separately-signed waiver for organizer events and a parent/guardian minor waiver.
- Confirm refund policy and its interaction with entrant-paid charges.
- Entrant-paid currently has Waypoint retaining 100% (no organizer payout) — payouts change the money-transmission analysis.
- Ensure acceptance is evidenced (clickwrap checkbox/record at signup and registration) so §2, §12, and §18–20 are enforceable.
- Consider an organizer addendum / DPA (organizer = controller, Waypoint = processor).

Waypoint — Privacy Policy

DRAFT FOR LEGAL REVIEW

Not legal advice. Location and emergency/health data raise heightened obligations (consent, sensitive-data handling, state and international privacy laws). Have qualified counsel review and adapt before publishing. Bracketed [...] items need your input.

Effective date: September 7, 2026 · **Controller / operator:** [Legal entity], operator of app.chasingwaypoints.com (the "Service"). This Policy explains what we collect, why, who sees it, and your choices, and works alongside our Terms of Service.

1. A note on sensitive data

The Service is built around two sensitive categories: **location data** and **emergency/medical ("ICE") information** (emergency contact, blood type, allergies). We treat these with extra care: ICE/medical data is stored only with your explicit consent, is shown only to the event organizer and the authorized command/recovery users they designate, and is **never** shown on public or embedded maps.

2. Information we collect

- **Account:** email and password (passwords handled by our auth provider; we don't see them in plain text).
- **Profile (optional):** name, date of birth, phone, country, blood type, emergency contact.
- **Event participation:** rider name/number, class, device type, and beacon feed links (Garmin inReach MapShare, SPOT feed, ZOLEO) you or an organizer add.
- **Location data:** positions from your beacon or browser/phone tracker while tracking, with timestamps and, where available, altitude and speed.
- **Emergency/ICE data:** emergency contact, blood type, allergies — collected only with your explicit, recorded consent (Section 5), or provided by an organizer who represents they have your consent.
- **Payments:** processed by Stripe. We do **not** store full card numbers; we keep transaction/subscription identifiers and status.
- **Usage & technical:** IP address, device/browser info, and access logs (including who accesses a Command/Google Earth feed via a shared token).

3. How we use information

To provide the Service (show live positions, run events, process payments); to authenticate and secure accounts; to make emergency/ICE information available to authorized organizer/command users during an event; to prevent abuse and enforce our Terms; to send service and billing messages; and to comply with law.

4. How information is shared

- **With organizers and their command/recovery users:** an event's organizer, and the command users they authorize via a per-credential link, can see entrants' live positions and (for ICE-consented entrants) emergency information for that event. Command/Google Earth credentials **expire when the event ends**.
- **On public / embedded maps:** only when an organizer enables public sharing, and only non-sensitive fields (name, number, class, position, last-seen). ICE, medical, and SOS details are never included.
- **Sub-processors:** Supabase (database/hosting), Vercel (app hosting), Mapbox (maps), Stripe (payments), and the beacon networks you connect (Garmin, SPOT, ZOLEO). Each has its own privacy terms.
- **Legal / safety:** where required by law or to protect rights, safety, or the integrity of the Service.
- We do **not** sell your personal information.

5. Consent for emergency/medical data

When you enter emergency/medical information during registration, you are asked to affirmatively consent, with wording substantially as follows, and the time of consent is recorded:

"I consent to sharing this emergency and medical information with the event organizer and emergency responders for the purpose of this event."

If you do not consent, that information is not stored. Where an **organizer** enters an entrant's information (e.g. a roster upload), the organizer represents that they have obtained the entrant's consent; organizers are the responsible party for that data.

6. Retention

We keep account and profile data while your account is active. Event and location data are retained to operate and show the event and its history. Command/feed credentials stop working once an event ends. You can delete your account (Section 7), which removes your associated data, subject to limited records we must keep for legal, tax, or fraud-prevention purposes.

7. Your choices and rights

- **Access / correction:** view and edit your profile in the app; an organizer can correct your event details (e.g. rider number/class).
- **Deletion:** delete your account from the app to remove your data.
- **Withdraw consent:** remove emergency/medical information you provided; removing it stops it being shown going forward.
- Depending on where you live, you may have additional rights (e.g. CCPA/CPRA or GDPR) to access, correct, delete, or port your data, to object to or restrict processing, and to non-discrimination. To exercise any of these, contact us at support@chasingwaypoints.com.

8. Security

Data is encrypted in transit (HTTPS) and at rest, access is restricted by row-level security so only you and authorized organizer/command users can reach your data, and sensitive links (ICE cards, command feeds) are gated by unguessable tokens. No system is perfectly secure; we cannot guarantee absolute security.

9. Children

The Service is not directed to children under 16. We do not knowingly collect their data. A minor may participate only through a parent/guardian or organizer who provides the required consent.

10. International users

The Service is operated from the United States; using it means your data may be processed in the U.S.

11. Changes to this Policy

We may update this Policy; material changes will be posted with a new effective date and, where appropriate, notice.

12. Contact

Waypoint Group Holdings LLC (DBA Chasing Waypoints Media). Privacy questions / data requests: support@chasingwaypoints.com.

NOTES FOR COUNSEL — PRIVACY

- Confirm retention windows for location, event, and ICE data.
- Confirm age threshold (COPPA at 13; some states/GDPR at 16) and the minor/organizer-consent flow.
- Add CCPA/CPRA notice-at-collection + request/verification; GDPR legal bases + transfer mechanism if serving those regions.
- Confirm sub-processor list; align organizer-as-controller / Waypoint-as-processor with the DPA in the Terms.
- Confirm treatment of health data (blood type/allergies) under applicable state sensitive-data law.

Waypoint (Chasing Waypoints / RallyTrak) — Terms of Service & Privacy Policy · DRAFT for counsel review, not legal advice · generated Sep 6, 2026.